

Chandra Pal Singh v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 26 February 2020 · Writ - C No. 23377 of 2012 · **Writ disposed; petitioners relegated to CGRF under Clause 7.10.**

HEADNOTE

Electricity-bill writ disposed following Ram Autar; consumers directed to the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005; delay alone is not a ground to reject the application.

FACTUAL SUMMARY

Chandra Pal Singh and others filed Writ-C No. 23377 of 2012 against U.P. Power Corporation Ltd. over disputed electricity bills. On 14 May 2012 a Division Bench connected the petition with Writ-C No. 11961 of 2012, stayed recovery of the impugned bill if rural-area minimum fixed charges were deposited each month, and allowed meter installation, leaving metered versus lump-sum liability to the result of the writ. The petition remained pending until 26 February 2020.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

cgrf-route-for-billing-dispute

HOLDING

On a dispute of electricity bill, the Court followed Ram Autar and disposed of the writ by directing the petitioners to appear before the Consumer Grievance Redressal Forum created under Clause 7.10 of the U.P. Electricity Supply Code, 2005, making clear that if they approach the Forum their application will not be thrown out only on account of delay. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONERS ARE LIABLE TO PAY METERED CHARGES OR LUMP-SUM FIXED CHARGES, AND THE CORRECTNESS OF THE IMPUGNED BILL

The 2012 interim order reserved that question to the result of the writ; the 2020 disposal sent the billing controversy to the CGRF without deciding it. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ram Autar v. U.P. Power Corporation Ltd.</i> Writ-C No. 11961 of 2012, order dated 23.10.2019			1	Referred